

25TRCV02796 25TRCV02796

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Case Number: 25TRCV02796 Hearing Date: September 3, 2026 Dept: B

Moving

Parties: Defendants Sriharman Group Inc. and Sridhar Sambangi

Responding

Party: Plaintiff 602 North Grand Avenue, L.P.

Motion

to Set Aside and Vacate Void Default and Default Judgment

The Court considered the moving and opposition papers.

RULING

The motion is DENIED.

BACKGROUND

On August 19, 2025, plaintiff 602 North Grand Avenue,

L.P. filed a complaint against defendants Sriharman Group Inc. and Sridhar

Sambangi for (1) breach of written contract, (2) money due on an open book

account, (3) money due on an account stated, and (4) for services rendered. The complaint alleges that on December 1,

2022, defendants entered into a written lease agreement with plaintiff for the premises

at 701 E. Cesar E. Chavez Ave., Suite 107, Los Angeles. On February 1, 2023, defendants entered into

a written lease for Suite 108. As to

Suite 107, defendants failed to make the required lease payment due on January

1, 2024. As to Suite 108, defendants

failed to make the required lease payment on March 1, 2025. Defendants abandoned both suites. Plaintiff sought to mitigate the damages and

was able to do so on September 1, 2024.

As of October 1, 2024, defendants owed to plaintiff the principal sum of at least \$105,103.82.

On October 8, 2025, a default was entered against defendants.

On February 5, 2026, a default judgment was entered against defendants.

On February 10, 2026, notice of filing judgment lien was entered.

On February 26, 2026, an abstract of judgment was filed.

On August 6, 2026, plaintiff filed a notice of filing of bankruptcy by judgment debtor Sridhar Sambangi and automatic stay. The notice indicates that defendant filed an application for Ch. 11 bankruptcy on July 15, 2026.

LEGAL

AUTHORITY

“[U]nder subdivision (d) of Code of Civil Procedure section 473, the court may set aside orders and judgments that are ‘void,’ including orders and judgments void for want of fundamental jurisdiction or personal jurisdiction.” Bae v. T.D.

Service Co. of Arizona (2016) 245 Cal. App. 4th 89, 97 (citations omitted). “[A] section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation [of Code of Civil Procedure section 473.5(a)].” California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225.

Under

Evidence Code § 647, “[t]he return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” Under Evidence Code § 604, “[t]he effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case

the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption. Nothing in this section shall be construed to prevent the drawing of any inference that may be appropriate."

DISCUSSION

Defendants request that the Court set aside and vacate the default and default judgment pursuant to CCP §473(d) on the ground that the judgment and underlying defaults are void for lack of personal jurisdiction because neither defendant was served with the summons and complaint in the manner required by law.

The proofs of service filed on October 6, 2025 indicate that defendants were personally served at 30303 Via Borica, Rancho Palos Verdes on August 25, 2025 by a registered process server.

Defendants dispute they were personally served. Defendant states in his declaration that 30303 Via Borica is his family residence. He states that on the morning of August 25, 2025, no process server or other person personally delivered or handed him the summons and complaint or any other court documents, whether in his individual capacity or on behalf of defendant company.

At the times stated on the proofs of service, he was at the corporation's business location at 1406 South Pacific Coast Highway, Redondo Beach, working with a staff member, Sushmitha, who can confirm his presence there. He believes that at the time, his friend, Aniketh Parmar, was visiting the residence.

Parmar does not reside at the Via Borica property and was not a member of his household. He believes that the process server "simply handed or left the documents with him." He states that he first saw the papers a few days later, in late August 2025, at the residence, but that no one personally delivered them to him. He states that he

first learned that a default and default judgment had been entered against defendants and that an abstract of judgment had been recorded in February 2026, when a title search performed in connection with a pending refinance revealed plaintiff's recorded judgment lien. He

states that he did not receive by mail the clerk's notice of entry of judgment. He states that he never avoided or evaded service of process.

Defendants dispute plaintiff's claims.

In opposition, plaintiff argues that the motion is untimely under CCP §473(b) because it was not filed within six months of when the default and default judgment were entered. The Court notes that defendants are not moving under CCP §473(b). Plaintiff also argues that defendants cannot rebut the presumption of valid service of process as defendants did not provide any evidence to corroborate his claim that he was not at his residence at the time of service, at work.

The Court rules as follows: The automatic stay resulting from the Chapter 11 bankruptcy action filed by defendant Sambangi does not prevent the Court from ruling on the present motion. The motion to set aside or vacate the default judgment is a proceeding initiated by the debtor, but the automatic stay prevents actions against the debtor. See *Shorr v. Kind* (1991) 1 Cal.App.4th 249, 254.

Defendants have not rebutted the presumption that they were personally served on August 25, 2025, as established by the declarations of the registered process server.

The only evidence submitted in support of defendants' contention is the self-serving declaration of defendant Sambangi stating he was not at the residence and was not personally served.

The Court is "not required to accept this self-serving evidence contradicting the process server's declaration." *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 751 (quotation marks omitted).

ORDER

The motion is DENIED.

Plaintiff is ordered to give notice of ruling.